!

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REDBELLY DAO

ANNOTATED FIELD GUIDE ACT NO. 38 OF 2026 FOR ISSUERS AND HOLDERS

Australia's Digital Assets Framework Act: What It Means for Tokeniser

The Act starts on 8 April 2027. A business that holds digital tokens for customers, or holds an asset and issues one redeemable token for it, will then generally need an Australian financial services licence, and existing platforms have until 7 October 2027 to apply. [1] [9] This guide shows where that line falls, when each step happens, what changes for issuers who tokenise through Tokeniser, and where Redbelly's compliance design fits and where it is still open.

Last verified 27 Oct 2026

Where the licensing line falls

A simplified map. Each item links to the detail and its source.

NEEDS A LICENCE

- Operating a digital asset platform
- Operating a tokenised custody platform
- Dealing in or advising on platforms

OUTSIDE THE LICENCE

- Small digital asset platforms that pass 4 tests
- Incidental mentions and arranging
- Public blockchains that pass 3 tests
- Validating those blockchains
- Technology-only providers

DEPENDS ON THE FACTS

- Who holds the keys
- Native tokenised fund units
- Pools and lending for tokenised products
- Whether Redbelly is public infrastructure

Sources: the Act [1], ASIC CP 392 [9] and ASIC's draft guide [10].

THE CALENDAR AT A GLANCE

Nov 2025 to Dec 2027

26 Nov 2025	Bill introduced
8 Apr 2026	Royal Assent
15 Oct 2026	ASIC consultation (CP 392) opens
27 Nov 2026	Submissions close
8 Apr 2027	Act commences, applications open
7 Oct 2027	Last day for existing platforms to apply

THE LAW SAYS	COMPANY SAYS	ANALYSIS	MARGIN NOTES
The Act, Parliament, Treasury or ASIC. Every point carries a source.	What Redbelly or Tokeniser say about their own products. Claims, not findings.	The writer's reading. Labelled because it can be wrong.	The source and section for each passage, beside the text. Numbers match the Evidence page.

01

The Act on one page

It adds two new financial products to the Corporations Act and puts the businesses that run them under ASIC licensing.

THE LAW SAYS

The *Corporations Amendment (Digital Assets Framework) Act 2026* is Act No. 38 of 2026. It amends the *Corporations Act 2001* and the *Australian Securities and Investments Commission Act 2001*. [1]

The Bill was introduced on 26 November 2025, passed both Houses on 1 April 2026 and received Royal Assent on 8 April 2026. [3] [1]

It is not a stand-alone crypto law. The two new platforms are regulated under the existing Australian financial services licence framework, with core duties such as acting efficiently, honestly and fairly, not misleading customers, explaining how assets are held, and offering dispute resolution. [4]

[1] DAF Act `title page; s 3; assent date` [3] Parliament bill page `progress of bill` [4] Treasury release `media release`

WHY IT EXISTS

The Government said when it introduced the Bill: "Currently, businesses can hold unlimited client digital assets without financial law safeguards. Recent collapses overseas have shown the consequences of inadequate oversight." [4]

ASIC says the Act addresses "regulatory gaps and consequent uncertainty" for digital assets and some of the infrastructure behind them, and aims to foster innovation, competition and growth. [9] ASIC's stated principle for putting it into practice is "same activity, same risk, same regulatory outcome". [8]

[4] Treasury release `media release` [9] ASIC CP 392 `para 3` [8] ASIC 26-245MR `Commissioner quote`

Five terms that carry the Act

THE LAW SAYS

Digital token s 761GB

An electronic record someone can control in fact: they can transfer it, stop others transferring it, and show they can do both. Practical control matters, not legal title. [1]

Digital asset platform s 761GC

An arrangement where an operator possesses digital tokens for, or on behalf of, a client. An exchange or custodian holding customers' tokens is the plain example. [1]

Tokenised custody platform s 761GD

The operator holds an asset other than money, creates one token for each asset, and the token gives a right to redeem it or direct its delivery. Something that fits both definitions is a TCP. [1]

Public digital token infrastructure s 9E

Software or hardware for digital tokens whose protocols are open and non-discretionary, let any person contribute to the network, and do not rely on any one critical participant. Regulations can switch the test off or name infrastructure that counts. [1]

Wrapped token s 765E

A token that gives a right to redeem an underlying asset. That redemption right is ignored when deciding if the token is a financial product, so it broadly takes the character of the asset behind it. [1] [10]

Two products, not one RG 000.20

A platform is a financial product separate from anything held through it. Duties can apply to the platform and, separately, to a token on it that is itself a financial product, such as a tokenised share. [10]

[1] DAF Act s 761GB; s 761GC; ss 761GD, 761GC(4); s 9E; s 765E [10] ASIC draft RG 000 RG 000.48; RG 000.20 to 000.21

02

The licensing line

Running a platform needs a licence. Some small, incidental or infrastructure activity does not.

WHO NEEDS A LICENCE

- **Platform operators.** From 8 October 2027, operators of digital asset platforms (DAPs) and tokenised custody platforms (TCPs), and some other providers of related services, need an AFS licence with the right authorisation unless an exemption applies. [9]
- **People around the platform.** Dealing in a platform other than by issuing it, or giving advice about one, also needs a licence. [9]
- **A corporation, not a person.** These services must be provided by a "constitutionally-covered corporation", which broadly means a trading, financial or foreign corporation. An individual or partnership providing them by phone, internet or similar means breaches a civil penalty provision. [1] [2]
- **Platform duties on top of the usual ones.** Licensed operators must follow ASIC's asset-holding standards and transactional and settlement standards, and keep platform rules with set contents, including transparent and non-discriminatory eligibility criteria. Before issuing a platform to a retail client they must give a DAP/TCP Guide and have a voting policy, and they must pass on communications about underlying assets when a client asks. [1]
- **Product design.** An issuer that must prepare a DAP/TCP Guide must also make a target market determination for the platform. [1] [10]

[9] ASIC CP 392 para 39; para 41 [1] DAF Act ss 766M, 9; ss 912BB, 912BC, 912BG, 1020AN to 1020AR; s 994B as amended
[2] Constitution s 51(xx) [10] ASIC draft RG 000 Section D table

Outside the licence

THE LAW SAYS

Small DAPs DAPs only, not TCPs	All four must hold: no financial products on any DAP run by the operator's closely-related group; no more than **$10 million** in transactions through those platforms in the last 12 months; whenever a token becomes a client's asset, that client's total entry value is no more than **$5,000**; and a notice has been lodged with ASIC. [1] Regulations can raise the amounts, and ASIC's draft guide says the value tests will rise with inflation. The platform is still a DAP. [1] [10]
Incidental mentions and arranging	Only telling someone a platform exists, or arranging for them to use one, in the ordinary course of business, where that is not a significant part of the business. [1]
Public digital token infrastructure	Not a managed investment scheme and not a financial product. Taking part in consensus on it, such as validating, is not a financial service and is not a clearing and settlement facility. [1]
Custodial staking on a licensed platform	Where the platform issuer holds an AFS licence to issue the platform, the staking part is not a separate scheme or financial product. [1] [10]
Technology only	ASIC's draft guide says an arrangement may not be a DAP where it only provides technology or infrastructure to an operator and does not possess tokens for the operator's clients, including some multi-party computation (MPC) key set-ups under expected regulations. [10]
Proposed in regulations	Sub-custodian, overseas issuer and client, overseas related body corporate or joint venture, and nominee company exemptions, all "subject to Government processes". An exemption does not stop a facility being a DAP or TCP. [10] [9]

[1] DAF Act s 911A(2)(ja), (6); s 911A(4B); s 911A(2)(jb); s 9 (mf); ss 765A(1)(xa), (xb), 766A(3)(b), 768A(2)(ha); s 9 (me); s 765A(1)(pa), (pb)

[10] ASIC draft RG 000 Table 3; RG 000.58 to 000.59; RG 000.41(b); RG 000.76 [9] ASIC CP 392 para 38

TRY IT

Small DAP test: do all four conditions hold?

Checks the four conditions in s 911A(2)(ja) using the amounts in the Act as made. It is a reading aid, not advice, and it does not apply to tokenised custody platforms. [1]

- ✓ No financial products held on the group's DAPs
- ✓ Transactions in the last 12 months do not exceed $10 million
- ✓ No client's total entry value exceeds $5,000
- ✗ Notice lodged with ASIC in the prescribed form

[1] DAF Act s 911A(2)(ja)

When another regime takes over

THE LAW SAYS

- **Managed investment schemes.** A platform that is also a scheme is regulated as a scheme unless carve-outs apply: clients can redeem the assets, the operator acts only on client instructions, and the operator cannot materially set clients' rights. A TCP must also hold one class of asset, and its tokens can only be as divisible as the asset can be physically delivered. [1] [10]
- **Markets and clearing.** Where a facility meets the financial market or clearing and settlement facility definition for assets that are financial products, that regime applies rather than the DAP rules. [10]
- **The Minister.** The Minister can declare a DAP to be a market or clearing facility, exempt one from those regimes, or ban specified financial products from going through specified platforms. [1]

[1] DAF Act s 764A(1)(la), (lb); s 9 (mc), (md); ss 767B, 767C, 768B, 768C, 912BH
[10] ASIC draft RG 000 RG 000.49 to 000.53; RG 000.60 to 000.62

If you hold tokens on a licensed platform

THE LAW SAYS

A guide before you join

Retail clients get a DAP/TCP Guide first. It must cover the platform's risks, who the custodians are, all fees, how your rights differ from holding the asset directly, and how to complain. [1]

Your votes, your call

The platform needs a voting policy. Where you can instruct, it votes only as you instruct; where you cannot, it does not vote. [1]

Papers on request

Communications sent to holders of an underlying asset must be passed on to you when you ask, including through a standing request. [1]

Rules that bind the operator

Platform rules have effect as a contract between the operator and each client. [1]

Client money in trust

ASIC's asset-holding standards must require money held under a platform, other than underlying assets, to be held in trust for clients. [1]

Somewhere to complain

The Government says licensed platforms must provide accessible dispute resolution and compensation if things go wrong. [4]

[1] DAF Act ss 1020AN, 1020AO; ss 1020AP, 1020AQ; s 1020AR; s 912BG(2); s 912BE(2)(b)

[4] Treasury release media release

03

The calendar

The Act is law now and starts on 8 April 2027. Existing platforms then have six months to apply, and can keep operating while ASIC decides.

DATE CHECK

8 April or 9 April 2027?

8 April 2027
Federal Register commencement column; ASIC CP 392 and 26-245MR (15 October 2026)

9 April 2027
ASIC's roadmap (20 April 2026) and news item (4 May 2026)

The Act starts on "the day after the end of the period of 12 months beginning on the day this Act receives the Royal Assent". [1] The Register records that day as 8 April 2027, in a column that is expressly not part of the Act. [1] ASIC's April and May 2026 material said 9 April 2027. [5] [6] Its October 2026 consultation says 8 April 2027, with 7 October 2027 as the last day to apply. [9] [8] This guide uses ASIC's latest dates. If an exact day matters to you, confirm it with ASIC.

[1] DAF Act s 2(1); s 2(2) [5] ASIC roadmap second paragraph [6] ASIC news, 4 May 2026 Digital Assets law reform
[9] ASIC CP 392 p 5; para 45 [8] ASIC 26-245MR first paragraph

THE LAW SAYS

DATE	WHAT HAPPENS	STATUS
BEFORE COMMENCEMENT		
26 Nov 2025	Bill introduced into the House of Representatives; the Government announces the reforms. [3] [4]	● DONE
4 Feb 2026	Bill passes the House. [3]	● DONE
5 Feb 2026	Introduced in the Senate and referred to the Senate Economics Legislation Committee, which reported on 16 March 2026. [3]	● DONE
1 Apr 2026	Bill passes both Houses. [3]	● DONE
8 Apr 2026	Royal Assent. The Act is law but its rules do not apply yet. [1]	● DONE
20 Apr 2026	ASIC publishes its 18-month implementation roadmap. [5]	● DONE

DATE	WHAT HAPPENS	STATUS
30 Sep 2026	End of ASIC's sector-wide INFO 225 no-action position, extended from 30 June 2026. This concerned licensing under the existing law for digital assets that are already financial products, not the new platform regime. [7] [6]	● DONE
15 Oct 2026	ASIC releases CP 392: a draft regulatory guide, draft asset-holding and transactional and settlement standards, and draft financial requirements. [8]	● DONE
27 Nov 2026	CP 392 submissions close at 5pm AEDT. [8]	● NEXT
Nov 2026 to Mar 2027	ASIC reviews feedback; final instruments and guidance planned for March 2027. [9]	○ LATER
COMMENCEMENT		
8 Apr 2027	The Act commences and DAP and TCP licence applications open. [9]	○ LATER
AFTER COMMENCEMENT		
8 Apr to 7 Oct 2027	Six-month transition. A business without the relevant authorisation can keep providing the service. If it applies in this window, the new rules do not apply to it until the day after ASIC decides. [1] [9]	○ LATER
7 Oct 2027	The transition window closes for applications and variations. [9]	○ LATER
From 8 Oct 2027	DAP and TCP operators need the relevant authorisation unless exempt. A business that did not apply is subject to the new rules as soon as the transition ends. [9] [1]	○ LATER
Ongoing	ASIC licenses, supervises and enforces the regime; regulations, ASIC standards and ministerial declarations can change the detail. [5] [1]	○ LATER

Status as at 27 October 2026.

[3] Parliament bill page `progress; notes` [4] Treasury release `media release`

[1] DAF Act `assent; s 2; ss 1730, 1732; s 1732 note; ss 912BE, 912BF, 912BH, 1735` [5] ASIC roadmap `page date; body`

[7] ASIC no-action extension `first paragraph` [6] ASIC news, 4 May 2026 `first paragraph` [8] ASIC 26-245MR `body`

[9] ASIC CP 392 `p 5, stages 3 and 4; p 5, stage 5; para 45; p 5, stage 6; para 39`

04

Issuers on Tokeniser

For most issuers the deciding question is custody: who can move the tokens, and whether an asset is held behind each one.

COMPANY SAYS

- Tokeniser describes itself as software for fund administration and investor portals that runs on Redbelly Network, and as "a Redbelly Network project". [11] [16]
- It says: "Products issued through Tokeniser operate under an Asset Issuer's existing licensing", and that eligibility checks (identity, KYC, AML, CTF, wholesale and sophisticated investor tests, and target market determinations) are programmed into each asset. [11]
- It says it does not hold investors' private keys; the investor or a designated key manager does, and it offers key management and recovery options. [15]
- It lists IQ-EQ as providing trust, registry and fund administration services, and "licence and service". [16]

[11] Tokeniser home `home page; FAQ` [16] Tokeniser about `about page; division of responsibility`
[15] Tokeniser custody FAQ `custody answer`

THE LAW SAYS

- **Tokenising is not, by itself, what gets licensed.** ASIC's draft guide: "A TCP is one way assets may be tokenised. Not every tokenisation arrangement is a TCP." [10]
- **Native fund units.** Where each token represents a unit in a unit trust and the blockchain is the primary unit-holder register, ASIC's draft guide says the arrangement "would generally be a managed investment scheme rather than a TCP". [10]
- **Tokens over financial products.** A token a TCP creates over an asset that is a financial product will generally be the same type of financial product as that asset. [10] [1]
- **Raising money through a platform.** A person offering securities through a DAP or TCP under a disclosure document lodged with ASIC must promptly tell the operator and each custodian if a supplementary or replacement document is lodged, if the person becomes prohibited from making offers under it, or if it is withdrawn. The document does not need to describe the platform. [1]
- **Interests created by the platform.** Operators and promoters are exempt from the fundraising rules for equitable interests in securities that arise from holding them through the platform. [1]
- **Trading venues.** A business may run a financial market for tokenised securities alongside a DAP for tokens that are not financial products, and each part is assessed on its own. [10]

[10] ASIC draft RG 000 `note to RG 000.33; note to RG 000.35; RG 000.48; RG 000.62` [1] DAF Act `s 765E; s 741A; s 741B`

Who holds the keys? Four set-ups

ANALYSIS

Pick the set-up closest to yours. Each card applies the rules above. It is the writer's reading, not ASIC's, and real structures vary.

A. Native units or shares; the investor holds the keys

Issuer	to	Investor wallet	on	Network
Issues units on-chain		Investor controls the key		Records transfers

Who "possesses" the token	The investor, who can transfer it, block others and show it. [1]
Platform rules engaged?	Probably not: no operator holds tokens for the investor and no separate asset sits behind each token. [1]
What still applies	The rules already covering the fund or company: scheme, AFSL, disclosure, target market and AML/CTF rules. ASIC's draft view is that native fund units are generally a scheme. [10]

B. An issuer, administrator, Tokeniser or key manager can move the tokens

Investor	via	Key holder	on	Network
Beneficial owner		Can transfer and block		Records transfers

Who "possesses" the token	The party that can transfer it, exclude others and show it. [1]
Platform rules engaged?	Possibly. If that party possesses tokens for investors, the arrangement may be a DAP, and the operator would need a DAP authorisation and to meet the asset-holding standards. [1] [10]
Watch for	Recovery keys and admin powers. Appointing an agent does not move responsibility away from the operator. [1] [10]

C. Control is split, for example multi-party computation

Party 1	and	Party 2	sign	Network
Holds a key share		Holds a key share		Records transfers

The joint-control rule	A person does not jointly possess a token if they need another person's express cooperation and that other person can act alone. [1]
Technology providers	ASIC expects regulations under which an MPC technology provider is not taken to possess the tokens. [10]
What decides it	The exact signing design, and the final regulations.

D. A custodian holds an existing asset and one redeemable token is issued for it

Custodian	mints	One token per asset	to	Holder
Holds the bond, gold or shares		Redeemable		Can redeem or direct delivery

What it looks like	A tokenised custody platform. [1]
What the operator needs	A TCP authorisation, platform rules, a DAP/TCP Guide for retail clients and compliance with the asset-holding standards. [1] [9]
The token itself	If the asset is a financial product, the token is generally the same type of product. [10]

[1] DAF Act s 761GB(2); ss 761GC, 761GD; ss 761GB(2), 86; ss 761GC, 912BB; s 761GE; s 86(3); s 761GD; ss 912BB, 912BG, 1020AN
[10] ASIC draft RG 000 note to RG 000.35; RG 000.36 to 000.38; RG 000.43; RG 000.41(b); RG 000.48 [9] ASIC CP 392 para 39

ANALYSIS

Six things to settle before 8 April 2027

1. List every party that holds keys or can move investors' tokens, including recovery and back-up arrangements.
2. Write down, with reasons, whether each product and service is a DAP, a TCP, a scheme, a market, or none of these.
3. Compare your AFS licence authorisations with ASIC's DAP and TCP authorisations once they are final.
4. Record who configures eligibility rules and who signs them off. Tokeniser says the fund manager stays responsible for that and remains the AML/CTF reporting entity. [14]
5. Read CP 392 and consider a submission by 27 November 2026. [8]
6. Get advice from an Australian financial services lawyer before relying on any classification.

[14] Tokeniser compliance FAQ FAQ [8] ASIC 26-245MR body

05

Redbelly and the rules

Redbelly's identity and eligibility tools line up with the parts of the law about access and records. Whether Redbelly counts as public digital token infrastructure is still open.

COMPANY SAYS

- Redbelly's documentation calls **Receptor** its "native digital identity and verifiable credential protocol", which "facilitates network access" and helps use cases set eligibility criteria and users prove they meet them. It uses the W3C verifiable credential data model. [18]
- The **Eligibility Kit** lets asset issuers check investor eligibility with zero-knowledge proofs, without the investor revealing the underlying personal data. [19] Its credential types include an AML/CTF credential and an Australian sophisticated or wholesale investor credential. [20]
- Individual onboarding includes wallet authentication, KYC verification and on-chain permission set-up. [21] Business onboarding (KYB) is provided by Averer. [22]
- Redbelly says AML, CTF and Travel Rule requirements "can be applied as needed". [17]

[18] Redbelly Receptor docs `overview` [19] Redbelly Eligibility Kit `overview` [20] Redbelly eligibility criteria `available schemas`
[21] Redbelly individual onboarding `overview` [22] Redbelly business onboarding `overview`
[17] Redbelly tokenisation `asset issuers section`

Rule by rule

SIDE BY SIDE

Eligibility rules

● LINES UP

LAW

Platform rules must include "transparent and non-discriminatory eligibility criteria for identifying who can become a client". [1]

DESCRIBED

Criteria written as credential queries; Tokeniser says every transfer is checked against the asset's rules. [20] [11]

ANALYSIS

A good mechanism for applying criteria the same way every time. Writing criteria that are transparent and non-discriminatory stays the operator's job.

Records and reconciliation

● PARTLY

LAW

ASIC can set asset-holding standards on record-keeping, reconciliation and reporting. [1]

DESCRIBED

Tokeniser says every check, transfer and rejection is recorded on-chain and in a compliance log. [14]

ANALYSIS

A shared ledger should help with reconciliation. Whether it meets the standards depends on the final text, planned for March 2027.

Holding client assets

● DEPENDS

LAW

Standards are expected to cover holding on trust, segregation and withdrawal rights, and must not ban one-wallet holding where internal records identify each client's tokens. [5] [1]

DESCRIBED

Tokeniser says investors hold tokens in their own wallets or through a designated key manager. [15]

ANALYSIS

True self-custody may keep the DAP rules out entirely. Where a key manager can move tokens, the standards may apply to that party. See set-ups A to C.

Retail guide and target market

● LINES UP

LAW

A DAP/TCP Guide before issuing to a retail client, and a target market determination where a Guide is required. [1] [10]

DESCRIBED

An Australian sophisticated or wholesale investor credential; Tokeniser says target market determinations are enforced at transfer. [20] [12]

ANALYSIS

Supports gating who can hold an asset. It does not write the Guide or the determination; those are still needed.

Settlement disclosure

● PARTLY

LAW

Platform rules must set out the settlement method, who bears counterparty and operational risk, and how acquisitions are recorded in any legal or technical register. [1]

DESCRIBED

Deterministic finality, described as final "the moment it completes". [12]

ANALYSIS

Clear finality should make the method easier to describe. The disclosure still has to be written and kept accurate.

AML/CTF

● SUPPORTS

LAW

The DAF Act itself contains no anti-money laundering rules. Its eligibility, conduct and disclosure duties fall on the licensed operator. [1]

DESCRIBED

KYC in onboarding; Tokeniser says the fund manager remains the AML/CTF reporting entity. [21] [14]

ANALYSIS

Tools help the responsible entity meet its duties. They do not move those duties onto the network.

Voting and communications

○ NOT ADDRESSED

LAW

A voting policy that votes only on client instructions where clients can instruct, and communications about underlying assets passed on request. [1]

DESCRIBED

No specific feature found in the sources reviewed.

ANALYSIS

A gap to ask about, not to assume either way.

Pools and lending

● OPEN

LAW

Public infrastructure is outside the scheme and financial product definitions, and consensus is outside financial services and clearing. [1] The market regime applies where a facility meets the market definition for financial products. [10]

DESCRIBED

Tokeniser says automated market maker liquidity and lending sit in an "exempt protocol layer", citing the Explanatory Memorandum. [13]

ANALYSIS

The writer found no express carve-out of this infrastructure from the "financial market" definition in the Act. Whether a given pool is itself public infrastructure, and whether trading tokenised financial products through it is operating a market, depends on facts. ASIC intends to update INFO 225, which covers how the Act treats public digital token infrastructure, before finalising its guide in early 2027. [10] The Explanatory Memorandum passages Tokeniser cites were not checked for this guide.

Is Redbelly public digital token infrastructure?

OPEN

LAW

Three tests: open, non-discretionary protocols; any person may contribute; no critical participant. Regulations can exclude a protocol or name infrastructure that counts. [1]

DESCRIBED

Tokeniser says Redbelly is "designed to meet the three statutory tests". [12] Redbelly's own docs say the issuers who provide network access are accredited by Redbelly [18], node operators are "successful applicants" who receive an invitation [23], operators must stake RBNT and Redbelly may slash misbehaving participants [25], and governors must give Redbelly notice of planned downtime. [24]

ANALYSIS

No ASIC guidance, court decision or regulation was found that decides this. Invitation-based node operation and Redbelly's role in accrediting network-access issuers raise questions under test (b), "any person" may contribute, and test (c), no critical participant. Tokeniser's own page says a protocol with a privileged role needs to evidence its design against test (c). [13]

[1] DAF Act s 912BG(1)(a); s 912BE(1)(a)(ii); s 912BE(2)(e); ss 1020AN, 994B; s 912BG(1)(c), (d); ss 912BA to 912BG, 1020AM; ss 1020AP to 1020AR; s 9 (mf); ss 765A(1)(xa), 766A(3)(b), 768A(2)(ha); s 9E(2), (3)

[20] Redbelly eligibility criteria query construction; available schemas [11] Tokeniser home FAQ

[14] Tokeniser compliance FAQ records; FAQ [5] ASIC roadmap table 1 [15] Tokeniser custody FAQ custody answer

[10] ASIC draft RG 000 Section D table; RG 000.60; note to RG 000.22

[12] Tokeniser technology compliant by design; settlement; FAQ [21] Redbelly individual onboarding overview

[13] Tokeniser protocol finance what the exemption covers; guardrails [18] Redbelly Receptor docs issuer accreditation

[23] Redbelly network nodes node operators [25] Redbelly node rewards rewards

[24] Redbelly reconfiguration governor requirements

BOTTOM LINE

- The closest match is on **who may access a product** and **keeping records**.
- The law puts duties on licensees, issuers and AML/CTF reporting entities, not on software. Tools help those people meet their duties. They do not take the duties over.
- The biggest open questions are about classification: whether Redbelly is public digital token infrastructure, who possesses tokens under a given key set-up, and when secondary trading needs a market licence.
- Nothing here says Redbelly, Tokeniser or any issuer is licensed, exempt or compliant. Most of the regime has not started.

06

What comes next

Five developments that will turn open questions into answers.

THE LAW SAYS

- **27 November 2026:** CP 392 submissions close. [8]
- **March 2027:** planned publication of ASIC's final standards and guidance. [9]
- **Regulations:** several exemptions, and the treatment of MPC key set-ups, depend on regulations still "subject to Government processes". [10]
- **INFO 225:** ASIC intends to update it, including on public digital token infrastructure, wrapped tokens and custodial staking, before finalising its guide in early 2027. [10]
- **Payments reforms:** some stablecoins will be regulated separately, as tokenised stored value facilities. [9]

[8] ASIC 26-245MR body [9] ASIC CP 392 p 5, stage 4; paras 6, 7
[10] ASIC draft RG 000 RG 000.41, Table 3; RG 000.22 and note

ANALYSIS

What would settle the Redbelly question. One of three things: ASIC guidance on how the three tests apply to permissioned networks; a regulation that names or excludes the protocol under s 9E; or a published, evidence-based assessment of Redbelly's protocol against each test that an adviser can rely on. The first two are for Government and ASIC. The third is something the community can ask for now.

A

Act map, terms and sources

The Act's main provisions in plain words, then the glossary and every source.

Act map

THE LAW SAYS

Schedule 1 of the Act, part by part. CP marks a civil penalty provision. [1]

Core concepts — Part 1

s 761GB	Digital token and factual control
s 761GC, 761GD	Digital asset platform; tokenised custody platform
s 761GE	Operators answer for their agents
s 764A(1)(la), (lb)	Both platforms become financial products unless they are schemes
s 765E	Redemption rights ignored for wrapped tokens
s 766M CP	Services must come from a constitutionally-covered corporation
s 767B, 767C, 768B, 768C	Minister can move platforms into or out of market and clearing rules
s 86	Possession of a digital token, including joint control

Licensee duties — Part 2

s 912BB CP	Comply with asset-holding and transactional and settlement standards
s 912BC CP	Have compliant platform rules
s 912BD CP	Obey a ministerial prohibition
s 912BE	Asset-holding standards: client money in trust; options for holding money if a bank refuses service; one wallet allowed with proper records
s 912BF	Transactional and settlement standards: overseas liquidity not blocked; written, enforced agreements with market makers
s 912BG	Platform rules: contents, contract effect, standards prevail
s 912BH, 912BI	Minister can ban products from platforms

Disclosure and design — Part 3

s 1010B(3)	No PDS for the platform itself; the Guide replaces it
s 1020AN CP	DAP/TCP Guide before issuing to a retail client
s 1020AO	What the Guide must contain
s 1020AP CP, 1020AQ	Voting policy and its contents
s 1020AR CP	Pass on communications about underlying assets
s 994B	Target market determination where a Guide is required
s 952E(4A)	Shared FSGs: no breach for defective parts another licensee says it is responsible for

Interventions and misconduct — Parts 4, 5

s 1023B(2)	Product intervention powers reach platforms in set cases
s 1040C	Market misconduct rules reach platforms in set cases

Exemptions — Part 6

s 9E	Public digital token infrastructure
s 9F	Custodial staking arrangement
s 765A(1)(pa) to (xb)	Infrastructure, staking and consensus rewards are not financial products
s 766A(3)(b)	Consensus is not a financial service
s 741A CP, 741B	Fundraising through platforms
s 911A(2)(ja), (jb)	Small DAP and incidental arranging exemptions

ASIC Act and transition — Parts 7, 8

ASIC Act ss 12BAA, 12BAB	Consumer protection provisions extended to platforms
s 1730	Six-month transition period from commencement
s 1732	Keep operating during transition; apply and wait for ASIC's decision
s 1735	Regulations may make transitional provisions

[1] DAF Act Sch 1; s 1317E items

Terms

GLOSSARY

AFS licence (AFSL)	Australian financial services licence, issued by ASIC. DAP and TCP operators need one with the right

	authorisation unless exempt. [9]
ASIC	Australian Securities and Investments Commission, which licenses and supervises these platforms and enforces the law. [5]
Royal Assent	The step that turns a passed Bill into an Act. For this Act, 8 April 2026. [1]
Commencement	The day the rules start to operate: 8 April 2027 on ASIC's latest statement. [8]
Transition period	The six-month period starting on commencement. [1]
Platform rules	The operator's rules for a DAP or TCP, which have effect as a contract with each client. [1]
DAP/TCP Guide	The disclosure document given to a retail client before a platform is issued. [1]
Constitutionally-covered corporation	A corporation within s 51(xx) of the Constitution (foreign corporations, and trading or financial corporations formed in Australia), or a body that is a corporation under the Corporations Act as originally enacted. [1] [2]
Managed investment scheme	A pooled investment arrangement regulated under Chapter 5C of the Corporations Act. Some platforms are carved out of the definition. [10]
Verifiable credential	A credential, such as proof of passing KYC, that an issuer gives a holder and a verifier can check. Receptor has issuer, holder and verifier modules. [18]
Zero-knowledge proof	A way to prove a statement, such as "is a wholesale investor", without revealing the data behind it. [19]
TMD	Target market determination, required under the design and distribution obligations. [10]

[9] ASIC CP 392 `para 39` [5] ASIC roadmap `body` [1] DAF Act `assent; s 1730; s 912BG(2); s 1020AN; s 9`
[8] ASIC 26-245MR `first paragraph` [2] Constitution `s 51(xx)` [10] ASIC draft RG 000 `RG 000.49 to 000.51; Section D table`
[18] Redbelly Receptor docs `modules` [19] Redbelly Eligibility Kit `how it works`

Sources

EVIDENCE

The law comes from primary sources: the Act, the Constitution, Parliament, Treasury and ASIC. Company websites are used only for what the companies say about themselves. Every link was opened on 27 October 2026. The Evidence page ties each claim to the exact wording behind it.

[1] **Corporations Amendment (Digital Assets Framework) Act 2026 (No. 38, 2026), as made**

PRIMARY LAW Federal Register of Legislation · Assented to 8 April 2026

https://www.legislation.gov.au/C2026A00038/asmade/text · PDF: https://www.legislation.gov.au/C2026A00038/asmade/2026-04-08/text/original/pdf

Used for: Assent date; commencement rule (s 2) and the Register's commencement column; definitions of digital token, DAP, TCP, wrapped token and public digital token infrastructure (ss 761GB, 761GC, 761GD, 765E, 9E); constitutionally-covered corporation rule (s 766M); licensee obligations (ss 912BB to 912BH); DAP/TCP Guide, voting policy and communications (ss 1020AN to 1020AR); design and distribution trigger (s 994B); fundraising rules (ss 741A, 741B); exemptions (ss 9 (me), (mf), 765A(1), 766A(3), 768A(2)(ha), 911A(2)(ja), (jb), 911A(4B)); managed investment scheme carve-outs (s 9 (mc), (md)); ministerial powers (ss 767B, 767C, 768B, 768C, 912BH); transitional rules (ss 1730 to 1733).

[2] **Commonwealth of Australia Constitution Act (The Constitution), section 51(xx)**

PRIMARY LAW Federal Register of Legislation · Latest compilation

https://www.legislation.gov.au/C2004Q00685/latest/text

Used for: Section 51(xx): "Foreign corporations, and trading or financial corporations formed within the limits of the Commonwealth". Used to explain the Act's term "constitutionally-covered corporation".

[3] **Corporations Amendment (Digital Assets Framework) Bill 2025: bill homepage and progress**

PARLIAMENT Parliament of Australia · Bill r7411

https://www.aph.gov.au/Parliamentary_Business/Bills_Legislation/Bills_Search_Results/Result?bId=r7411

Used for: Introduced 26 November 2025; passed the House 4 February 2026; introduced in the Senate and referred to the Senate Economics Legislation Committee 5 February 2026; committee report 16 March 2026; finally passed both Houses 1 April 2026; assent 8 April 2026. Also links the Explanatory Memorandum and Bills Digest.

[4] **New digital asset laws to unlock innovation and safeguard investment (joint media release)**

GOVERNMENT Treasurer and Minister for Financial Services · 26 November 2025

https://ministers.treasury.gov.au/ministers/jim-chalmers-2022/media-releases/new-digital-asset-laws-unlock-innovation-and-safeguard

Used for: Why the law was introduced (client assets held without financial law safeguards; overseas collapses); two new financial products; AFSL core obligations; small-platform exemption described as under $5,000 per customer and under $10 million in yearly transactions.

[5] **ASIC's roadmap for digital assets law reform implementation**
REGULATOR (ASIC) Australian Securities and Investments Commission · 20 April 2026
https://www.asic.gov.au/about-asic/news-centre/news-items/asics-roadmap-for-digital-assets-law-reform-implementation

Used for: 18-month implementation timeline; ASIC's plan to consult on asset-holding standards, transactional and settlement standards and financial requirements; indicative topics (holding on trust, segregation, record keeping, reconciliation, withdrawal rights); at the time, stated commencement of 9 April 2027.

[6] **Deadline looms for digital asset businesses to apply for a licence**
REGULATOR (ASIC) Australian Securities and Investments Commission · 4 May 2026
https://asic.gov.au/about-asic/news-centre/news-items/deadline-looms-for-digital-asset-businesses-to-apply-for-a-licence

Used for: INFO 225 no-action position (then due to end 30 June 2026) concerns licensing under existing law; penalties for unlicensed conduct; Act passed 1 April 2026; at the time, stated commencement of 9 April 2027.

[7] **ASIC extends no-action position for digital asset businesses to 30 September 2026**
REGULATOR (ASIC) Australian Securities and Investments Commission · 25 June 2026
https://www.asic.gov.au/about-asic/news-centre/news-items/asic-extends-no-action-position-for-digital-asset-businesses-to-30-september-2026

Used for: Extension of the sector-wide INFO 225 no-action position from 30 June 2026 to 30 September 2026, and its expanded scope.

[8] **26-245MR ASIC consults on implementation of new digital asset laws**
REGULATOR (ASIC) Australian Securities and Investments Commission · 15 October 2026
https://www.asic.gov.au/about-asic/news-centre/find-a-media-release/2026-releases/26-245mr-asic-consults-on-implementation-of-new-digital-asset-laws

Used for: New laws commence 8 April 2027; CP 392 contents; consultation closes 5pm AEDT 27 November 2026; "same activity, same risk, same regulatory outcome"; no-action deadline extended to 30 September 2026; ASIC recorded over 140 digital asset-related applications.

[9] **Consultation Paper 392 Digital asset law reform implementation: Proposed standards and guidance**
REGULATOR (ASIC) Australian Securities and Investments Commission · 15 October 2026
https://download.asic.gov.au/media/0pqj5lgc/cp392-published-15-october-2026.pdf · CP 392 landing page: https://www.asic.gov.au/regulatory-resources/find-a-document/consultations/cp-392-digital-asset-law-reform-implementation-proposed-standards-and-guidance

Used for: Next steps timeline (feedback by 27 November 2026; final instruments and guidance March 2027; commencement and applications open 8 April 2027; transition window closes 7 October 2027); purpose of the Act (paras 2 to 5); licensing from 8 October 2027 (para 39); related services need licensing (para 41); continue operating if applied by deadline (para 45); proposed new exemptions (para 38); payments reforms and tokenised stored value facilities (paras 6 and 7).

[10] **Draft Regulatory Guide 000 Digital asset platforms and tokenised custody platforms (Attachment 1 to CP 392)**
REGULATOR (ASIC) Australian Securities and Investments Commission · October 2026 (draft for consultation)
https://download.asic.gov.au/media/a3cpo5ds/attachment-1-to-cp392-published-15-october-2026.pdf

Used for: A DAP or TCP is a financial product separate from assets held through it (RG 000.20 to 000.21); INFO 225 to be updated on public digital token infrastructure (RG 000.22 note); not every tokenisation arrangement is a TCP and native tokenised fund units are generally a managed investment scheme (RG 000.33 note, RG 000.35 note); DAP scope and technology-provider carve-out (RG 000.36 to 000.41); wrapped token treatment (RG 000.48); managed investment scheme interaction (RG 000.49 to 000.53); custodial staking (RG 000.58 to 000.59); markets and CS facilities prevail (RG 000.60 to 000.62); exemptions do not stop a facility being a DAP or TCP, and Table 3 of key exemptions (RG 000.75 to 000.77); TMD needed where a DAP/TCP Guide is required (Section D table).

[11] **Tokeniser: home page and FAQ**
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com

Used for: Tokeniser's own description: SaaS for fund administration and investor portals, operating on Redbelly Network; "Products issued through Tokeniser operate under an Asset Issuer's existing licensing"; eligibility (identity, KYC, AML, CTF, wholesale and sophisticated investor tests, TMD) programmed into each asset and checked on every transfer.

[12] **Tokeniser: Our technology**
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com/technology

Used for: Tokeniser's statements that Redbelly is designed to meet the three statutory tests for public digital token infrastructure and to sit outside markets, clearing and settlement, and custody licensing; deterministic finality; TMD enforced at point of transfer.

[13] **Tokeniser: Protocol finance**
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com/protocol-finance

Used for: Tokeniser's view that automated market maker liquidity, lending and settlement sit in an exempt protocol layer, citing the Explanatory Memorandum; its own guardrails, including that a protocol with a controlling foundation, admin key or privileged role needs to evidence its design against s 9E(2)(c).

[14] **How does Tokeniser handle investor compliance? (Knowledge Hub)**
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com/resources/knowledge-hub/australia/how-tokeniser-handles-investor-compliance

Used for: KYC/AML and investor classification before wallet activation; compliance parameters enforced at transfer; checks and rejections recorded on-chain and in a compliance log; fund manager remains responsible for configuration and remains the AML/CTF reporting entity.

[15] **What is self-custodial asset administration? (Knowledge Hub)**
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com/resources/knowledge-hub/platform/what-is-self-custodial-asset-administration

Used for: Tokeniser says it does not hold the private key (the investor or a designated key manager does) and provides key management and recovery options.

[16] **Tokeniser: About us**
COMPANY (TOKENISER) Tokeniser Pty Ltd · Accessed 27 October 2026
https://tokeniser.com/about

Used for: Tokeniser describes itself as a Redbelly Network project, and lists a division of responsibility in which IQ-EQ provides trust, registry, fund administration, and licence and service.

[17] **Asset tokenisation on Redbelly Network**
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://redbelly.network/asset-tokenisation

Used for: Redbelly's statements that eligibility is enforced at the point of trade using verifiable credentials and that AML, CTF and Travel Rule requirements can be applied as needed.

[18] **Receptor (ID protocol), Redbelly Network technical documentation**
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://docs.redbelly.network/pages/receptor/
Used for: Receptor is Redbelly's native digital identity and verifiable credential protocol; it facilitates network access; issuers who provide network access are accredited by Redbelly; built on the W3C verifiable credential data model.

[19] **Eligibility Kit overview, Redbelly Network technical documentation**
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://docs.redbelly.network/pages/eligibility-sdk/overview/
Used for: Toolkit for real-world asset issuers to verify investor eligibility using zero-knowledge proofs without the user revealing sensitive personal data.

[20] **Configure eligibility criteria, Redbelly Network technical documentation**
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://docs.redbelly.network/pages/eligibility-sdk/configure-eligibility-criteria/
Used for: Eligibility criteria are written as queries over credentials (for example country, age, AML status); supported credential types include AMLCTFCredential and AUSophisticatedWholesaleInvestorCredential; revocation checks should stay on in production.

[21] **Individual onboarding overview, Redbelly Network technical documentation**
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://docs.redbelly.network/pages/eligibility-sdk/onboarding/individual/overview/
Used for: Individual onboarding to gain access to the Redbelly Network includes wallet authentication, KYC verification and on-chain permission setup.

[22] **Business onboarding overview, Redbelly Network technical documentation**
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://docs.redbelly.network/pages/eligibility-sdk/onboarding/business/overview/
Used for: Business onboarding (KYB) is provided by Averer and deploys an on-chain Business Identifier contract that can delegate access to company wallets.

[23] **Network nodes, Redbelly Vine developer portal**
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://vine.redbelly.network/nodes/
Used for: Node operators are described as successful applicants who receive an invitation to run a node.

[24] **Network reconfiguration, Redbelly Vine developer portal**
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://vine.redbelly.network/nodes/reconfiguration/

Used for: Governor and candidate nodes; governors are rotated; governors must notify Redbelly of planned downtime and may be demoted or replaced under the governance rules.

[25] **Rewards and incentives, Redbelly Vine developer portal**
COMPANY (REDBELLY) Redbelly Network · Accessed 27 October 2026
https://vine.redbelly.network/nodes/rewards-and-incentives/

Used for: Each node operator must stake RBNT to be eligible to participate in Mainnet; Redbelly reserves the right to slash the stake of misbehaving participants.

REDBELLY DAO

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